

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

LAMONT HOUGH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JENNIFER SANTAMARIA, Tax No. 959967,
SERGEANT JOHN FERRARA, Tax No. 925280, and
POLICE OFFICERS JOHN DOES #s 1-4 (names and
numbers of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Bronx
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 12, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JENNIFER SANTAMARIA, Tax No. 959967, 46th Precinct, 2120
Ryer Ave, Bronx, Ny 10457
SERGEANT JOHN FERRARA, Tax No. 925280, 46th Precinct, 2120 Ryer Ave, Bronx, Ny
10457

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff LAMONT HOUGH, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on March 12, 2019 at approximately 10:00 am he was lawfully present in the vicinity of 104 West 174th Street, Bronx, New York 10453 when defendants unlawfully stopped, questioned, frisked, searched, seized, and falsely arrested/ imprisoned plaintiff for allegedly having an open bench warrant even though a reasonable police officer viewing the information contained on the purported open Bench Warrant would have recognized that the Bench Warrant was not for plaintiff and was for a different individual. The Bench Warrant was for an individual named Quentin Hough, not plaintiff Lamont Hough. The individual named on the Bench Warrant had a different birth date than plaintiff. The individual named in the bench warrant had a different NYSID Number assigned to him than plaintiff. The address and physical description of the person named in the bench warrant was different than plaintiff's home address and his physical description. The individual named in the bench warrant was clearly not plaintiff. In fact, the only similarity between plaintiff and the individual named on the Bench Warrant was their last name. Plaintiff was unlawfully handcuffed and falsely arrested without probable cause, placed in a patrol car, transported to the 46th Precinct where he was unlawfully searched, fingerprinted, photographed, and detained in in a filthy holding cell for several hours. On March 13, 2019, at approximately 1:00 pm plaintiff was transported from the 46th Precinct to a Courtroom located in the Bronx Hall

of Justice, to be returned on the Bench Warrant issued for Quentin Hough. The Court set bail for plaintiff and remanded him into DOC custody under the name Quentin Hough, for the criminal court docket of the criminal case that the Bench Warrant was issued for because the defendants presented false allegations against plaintiff to the Court that plaintiff was the individual named on the Bench Warrant. Plaintiff was unlawfully detained by New York City Department of Corrections at the Vernon C. Bain Center ("VCBC") under the name Quentin Hough, using Quentin Hough's NYSID number. The employees of the New York City Department of Corrections also negligently and recklessly failed to recognize that plaintiff was not the individual named Quentin Hough who was listed on the Bench Warrant that the New York City Department of Corrections was ordered to detain. Plaintiff was unlawfully detained as Quentin Hough at the VCBC facility from March 13, 2019 through March 15, 2019. On March 15, 2019, plaintiff was returned to a courtroom located in the Bronx Hall of Justice to appear as the defendant in Quentin Hough's criminal case. When plaintiff returned to court, the Bronx District Attorney's Office informed the court that it determined plaintiff was not Quentin Hough and that an error was made when he was returned on the bench warrant issued for Quentin Hough and then remanded to VCBC for multiple days. The Court released plaintiff from custody immediately upon learning he was not the defendant named in the case and the Judge expressed his displeasure with the fact that such a mistake was made, causing plaintiff to be unlawfully seized and detained in DOC custody for approximately 3 days. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff LAMONT HOUGH is a resident of the state of New York.
3. Defendant POLICE OFFICER JENNIFER SANTAMARIA, Tax No. 959967, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER JENNIFER SANTAMARIA, Tax No. 959967, is and was at all times relevant herein, assigned to the 46th Precinct.
5. Defendant POLICE OFFICER JENNIFER SANTAMARIA, Tax No. 959967,, is being sued in his individual and official capacity.
6. Defendant SERGEANT JOHN FERRARA, Tax No. 925280, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant SERGEANT JOHN FERRARA, Tax No. 925280, was at all times relevant herein, assigned to the 46th Precinct.
8. Defendant SERGEANT JOHN FERRARA, Tax No. 925280, is being sued in his individual and official capacity.

9. Defendant New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and plaintiff has complied with all of the requirements set forth in General Municipal Law Section 50.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On March 12, 2019 at approximately 10:00 am plaintiff was lawfully present in the vicinity of 104 West 174th Street, Bronx, New York 10453 when defendants unlawfully stopped, questioned, frisked, searched, seized, and falsely arrested/ imprisoned plaintiff for allegedly having an open bench warrant even though a reasonable police officer viewing the information contained on the purported open Bench Warrant would have recognized that the Bench Warrant was not for plaintiff and was for a different individual.

18. The Bench Warrant was issued for an individual named Quentin Hough, not plaintiff Lamont Hough.

19. The Bench Warrant was issued by a judge in Bronx Criminal Court on May 3, 2017, after the defendant Quentin Hough failed to appear in Bronx Criminal Court in People v. Quentin Hough, Docket No. 2016BX037682.

20. Quentin Hough, the individual named on the Bench Warrant, had a different birth date than plaintiff.

21. Quentin Hough, the individual named in the Bench Warrant has a birth date in October 1983 and plaintiff has a birth date in August 1986.

22. The individual named in the bench warrant had a different NYSID number assigned to him than plaintiff.

23. The individual named in the Bench Warrant is assigned NYSID number 9783911Q and plaintiff is assigned NYSID number 02301266Z.

24. The physical description of the individual named in the Bench Warrant was significantly different than plaintiff's physical description.

25. The individual named in the Bench Warrant was listed as residing in Hastings, New York while at all times relevant herein plaintiff lived in the Bronx.

26. Defendants were in possession of plaintiff's identification card issued by New York State which listed his home address and birthdate at the time they arrested plaintiff and knew that the birthdate and address were completely different from the birthdate and address of the individual listed on the bench warrant.

27. Additionally, the defendants were in possession of plaintiff's NYSID number at the time of his arrest.

28. The NYSID number is a unique number assigned to individuals by New York State using the person's fingerprints so that an individual does not have multiple NYSID numbers issued for him.

29. Defendants were aware that plaintiff's NYSID number did not match the NYSID number of the individual listed on the bench warrant, at the time defendants placed plaintiff under arrest.

30. In fact, the only similarity between plaintiff and the individual named on the Bench Warrant was their last name.

31. The individual named in the bench warrant was clearly not plaintiff, based upon the information in defendants' possession at the time they arrested plaintiff.

32. A reasonable officer who possessed the information in the possession of defendants at the time of plaintiff's arrest would not have believed that plaintiff was the individual named in the bench warrant and defendants lacked probable cause to arrest plaintiff pursuant to the bench warrant issued for Quentin Hough.

33. Defendants unlawfully handcuffed and falsely arrested plaintiff, without probable cause, placed plaintiff in a patrol car, and transported plaintiff to the 46th Precinct against his will.

34. Defendants unlawfully searched, fingerprinted, photographed, and detained plaintiff in in a filthy holding cell for several hours at the 46th Precinct.

35. On March 13, 2019, at approximately 1:00 pm plaintiff was transported from the 46th Precinct to a courtroom located in the Bronx Hall of Justice, to be returned on the Bench Warrant issued for Quentin Hough.

36. The Court set bail for plaintiff and remanded him into DOC custody under the name Quentin Hough, in the matter of People v. Quentin Hough, Docket No. 2016BX037682 because the defendants presented false allegations against plaintiff to the Court that plaintiff was the individual named on the Bench Warrant.

37. Plaintiff was unlawfully detained by New York City Department of Corrections at the Vernon C. Bain Center ("VCBC") under the name Quentin Hough, using Quentin Hough's NYSID number.

38. The employees of the New York City Department of Corrections also negligently and recklessly failed to recognize that plaintiff was not the individual named Quentin Hough who was listed on the Bench Warrant that the New York City Department of Corrections was ordered to detain.

39. Plaintiff was unlawfully detained as Quentin Hough at the VCBC facility from March 13, 2019, through March 15, 2019.

40. On March 15, 2019, plaintiff was returned to a courtroom located in the Bronx Hall of Justice to appear as the defendant in Quentin Hough's criminal case.

41. When plaintiff returned to court, the Bronx District Attorney's Office informed the court that it determined plaintiff was not Quentin Hough and that an error was made when he was returned on the bench warrant issued for Quentin Hough and then remanded to VCBC for multiple days.

42. The Court released plaintiff from custody immediately upon learning he was not the defendant named in the case and the Judge expressed his displeasure with the fact that such

a mistake was made, causing plaintiff to be unlawfully seized and detained in DOC custody for approximately 3 days.

43. The false information provided to the Court by defendants that plaintiff was the individual named in the Bench Warrant caused plaintiff to be maliciously prosecuted, without probable cause for approximately 3 days in the matter of People v. Quentin Hough, Docket No. 2016BX037682.

44. The defendants denied plaintiff the right to due process/ right to a fair trial when they provided the Court with the false information that plaintiff was the individual named in the Bench Warrant, causing him to become a defendant in a criminal prosecution that was supposed to be against another individual.

45. Defendants did not possess an objective factual basis to establish probable cause to accuse plaintiff of being the individual named in the Bench Warrant.

46. Defendants falsely arrested plaintiff, without probable cause or legal justification.

47. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

48. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, questioned, frisked, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

49. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

50. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

51. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States, the denial of due process under the Fourth and Fifth Amendments to the Constitution of the United States, and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

59. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

68. Defendants lacked probable cause to search plaintiff.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

73. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

75. Defendants commenced and continued a criminal proceeding against plaintiff.

76. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

77. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

78. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fifth and Fourteenth Amendment Rights****Denial of Right to Fair Trial/Due Process**

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

85. In withholding/creating false evidence against plaintiff Kason Foust, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

86. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Negligence**

89. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Defendants owed a duty of care to plaintiff.

91. To the extent defendants claim that they mistakenly believed plaintiff was the individual named in the bench warrant they used to arrest plaintiff, then defendants breached that duty of care by causing plaintiff to suffer psychological and emotional injuries as a result of defendants' careless, reckless, negligent, and/or accidental behavior.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

93. All of the foregoing occurred without any fault or provocation by plaintiff.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. By falsely arresting plaintiff pursuant to a bench warrant that was issued for a different individual with a different name than plaintiff, without any legal basis, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The above-described conduct by falsely arresting plaintiff pursuant to a bench warrant that was issued for a different individual with a different name than plaintiff, without any legal basis, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

105. Defendants' conduct was intentional, wanton, and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

106. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

107. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

108. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

111. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION**Failure to Intervene**

112. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

114. Defendants failed to intervene to prevent the unlawful conduct described herein.

115. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

118. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

119. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff LAMONT HOUGH demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 12, 2022

By: *David Hazan*

DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 12, 2022

David Hazan

DAVID M. HAZAN